

**PUNISHMENT NORMS IN ACCIDENT CASES
CIVIL ENGINEERING DEPARTMENT**

NOTE:

- i) 'D' staff – Staff directly held responsible for the accident.
'S' staff – Staff who are found to have secondary responsible including that of supervisors, JE / SE / SSE (P.Way) and PWS etc., whose failure to do proper inspections and take timely remedial measures and slack supervision would have contributed to the accident.

The penalty to be imposed in these cases will depend on the degrees of the contribution to the accident. The disciplinary authority will use his discretion in this matter. While fixing responsibility for slack supervision and neglect of periodical inspections, the period for which the supervisors have been in-charge of the section is also to be taken into account.

- ii) The Disciplinary Authority must impose the minimum penalty if the responsibility of the staff is clear. Factors like the employee's past record of service and other extenuating circumstances as for want of materials and similar problems may be taken into account by the Appellate Authority when appeal is made to it. The Disciplinary Authority should deal with the case solely with regard to the facts and circumstances of the accident itself.

Nature of accident	Minimum penalty
1. Major track defects such as buckling, worn-out switches and crossings and spread of guage. i) Resulting in derailment of passenger trains. ii) Resulting in derailment of goods train on the main line in mid section or within station limit. iii) Resulting in derailment of goods train in station yards on other than main line.	a) 'D' staff i) Dismissal, if there is loss of life. ii) Removal from service if no loss of life. b) 'S' staff – Reduction to a lower grade for a period of 3 years with loss of seniority. If any staff such as JE (P.Way) are in the lowest grade reduction by 3 stages in the scale of pay with loss of seniority. If the staff are in the lowest stages of pay where reduction by 3 stages is not possible, WIT for 3 years with loss of seniority. a) D staff – Reduction to a lower grade for a period of 3 years with loss of seniority. If any staff such as JE (P.Way) are in the lowest grade by 3 stages in the scale for pay with loss of seniority. If the staff are in the lowest stage of pay where reduction by 3 stages is not possible, WIT for 3 years with loss of seniority. b) 'S' staff – Reduction to a lower stage in time of pay for a period of 3 years with effect of postponing future increments on expiry of such period. a) 'D' staff – Reduction to a lower stage in time of pay for a period of 2 years without the effect of postponing future increment. b) 'S' Staff – WIT upto 2 years 11 months or with holding of Pass / PTOs for 2 years where the staff has reached the maximum of the grade.

2. Other track defects like cross levels or low joints and defective alignment in curves etc. i) Resulting in derailment of passenger trains. ii) Resulting in derailment of goods train on the main line in mid section or within station limits. iii) Resulting in derailment of goods train in station yard or other than main line.	a) 'D' staff Removal from service if there is loss of human life. Reduction to a lower grade for a period of 3 years with loss of seniority if no loss of life. If any staff such as JE (P.Way) are in the lowest grade, reduction by 3 stages in the scale of pay with loss of seniority. If the staff are in the lowest stage of pay where reduction by 3 stages is not possible. WIT for 3 years, with loss of seniority. b) 'S' staff Reduction to a lower stage in time scale of pay for a period of 3 years with effect of postponing future increments on expiry of such period. a)'D' staff – Reduction to a lower grade for one to three years with loss of seniority. b) 'S' staff – Reduction to a lower grade in time scale of pay for a period of one to 3 years without increments. a) 'D' staff – Reduction to a lower stage in time scale of pay for a period of one to 3 years without the effect of postponing future increments. b) 'S' staff – WIT for one year or with holding of passes and PTOs for one year if at maximum of grade.
3. Miscellaneous cause like infringement of track by irregular unloading of ballast, track materials etc., due to neglect of P. Way staff or failure to protect track in case of destruction, opening of track, breach etc.	WIT upto 3 years or reduction to a lower grade removal from service according to the accident and damages caused.
4. In respect of accidents during shunting operations in sidings and other non-running lines due to track defects.	WIT for one year or with holding of passes and PTOs where the staff has reached the maximum should be imposed depending on the extent of neglect of maintenance and other circumstances.

STAFF OF ELECTRICAL DEPARTMENT

a) Accidents to passenger train involving loss of human life.	Removal from service.
b) Accidents to passenger train not involving loss of human life	i) Reduction to lower grade. ii) If the staff is in the lowest grade, reduction to a lower stage.
c) Fire accidents involving loss of human life.	Removal from service.
d) Fire accidents without loss of human life.	i) Reduction to lower grade. ii) If the staff is in the lowest grade, reduction to a lower stage.